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PART I : SECTION (I) — GENERAL

Government Notifications

L.D.B - 11/80(32).

FOOD ACT, No. 26 OF 1980

REGULATIONS made by the Minister of Health in consultation with the Food Advisory Committee under Section 32 of the Food Act, No. 26 of 1980.

Minister of Health.

Colombo,
28th April, 2023.

Regulations

1. These regulations may be cited as the Food (Iodization of Salt) Regulations 2023 and shall come in to operation with effect from 01st January, 2024.

2. No person shall manufacture, import, store for sale, sell, offer for sale, expose or keep for sale, transport or distribute any type of food grade salt other than iodized food grade salt for purposes of human consumption, including salt used as an ingredient of food and for manufacturing of food, except in accordance with the provisions of these Regulations.



PART I

NON - IODIZED FOOD GRADE SALT

3. (1) Every person who-

- (a) manufactures and stores non - iodized food grade salt in salterns and transports non - iodized food grade salt from salterns;
- (b) sells non - iodized food grade salt in small containers, not exceeding hundred grams (100g) per container, in pharmacies registered under Section 119 of the National Medicines Regulatory Authority Act, No. 5 of 2015 and on a prescription issued by a medical practitioner; and
- (c) imports, transports, stores or uses any non - iodized food grade salt or common salt for industrial purposes;

Shall obtain a certificate of registration issued by the Director, on an application made in that behalf.

(2) An application for the certificate of registration referred to in subregulation (1) shall be-

- (a) made substantially in the Form set out in the Schedule I hereto; and
- (b) accompanied with all relevant documents as may be specified for that purpose by the Director.

(3) (a) The Director may issue a certificate of registration in accordance with subregulation (4).

- (b) Where the Director refuses the registration, such refusal shall be communicated to the applicant with reasons assigned therefore within thirty days from the date of receipt of the application.

(4) The certificate of registration-

- (a) for the purposes of paragraph (a) of subregulation (1), shall substantially be in the format set out in the Schedule II;
- (b) for the purposes of paragraphs (b) and (c) of subregulation (1), shall substantially be in the format set out in the Schedule III hereto; and
- (c) shall be valid for a period of one year from the date of issue of such certificate, unless it is revoked or cancelled earlier and subject to such conditions as specified therein.

(5) An application for renewal of the certificate of registration referred to in subregulation (1) shall be-

- (a) made ninety (90) days prior to the expiration of the current certificate of registration in the same Form set out in the Schedule I hereto; and
- (b) accompanied by the documents as may be specified for that purpose by the Director.

(6) Renewal of the certificate of registration shall be made by an endorsement on the certificate of registration by the Director.

4. Non-iodized food grade salt shall be-

- (a) in white or off-white colour and free from visible impurities such as clay, grit, shells and other extraneous matters; and

(b) either in granular or powdered form:

Provided however, the powdered form may contain Silicon dioxide (INS 551) or any other anti - caking agent approved in writing by the Chief Food Authority (hereinafter referred to as the “CFA”) on the recommendation of the Food Advisory Committee.

5. Non-iodized food grade salt shall not contain more than-

- (a) 0.5 milligrams per kilogram (0.5 mg/kg) arsenic (As);
- (b) 0.5 milligrams per kilogram (0.5 mg/kg) Cadmium (Cd);
- (c) two milligrams per kilogram (2.0 mg/kg) Lead (Pb); and
- (d) 0.1 milligrams per kilogram (0.1 mg/kg) Mercury (Hg).

6. Non-iodized food grade salt in powdered form shall-

- (a) not contain more than-
 - (i) 0.5 *per centum* (0.5%) m/m moisture;
 - (ii) 0.5 *per centum* (0.5%) m/m matter insoluble in water, on dry basis;
- (b) contain not less than ninety-eight *per centum* (98%) m/m Sodium chloride (NaCl) on dry basis; and
- (c) be where a minimum of ninety-five *per centum* (95%) m/m is capable of passing through a sieve with an aperture of one millimeter (1.0 mm) {B.S. 16}.

7. Non-iodized food grade salt in granular form shall-

- (a) not contain more than-
 - (i) six *per centum* (6.0%) m/m moisture; and
 - (ii) one *per centum* (1.0%) m/m matter insoluble in water, on dry basis;
- (b) contain not less than ninety-seven *per centum* (97%) m/m Sodium chloride (NaCl) on dry basis;

PART II

IODIZED FOOD GRADE SALT

- 8. (1) No person shall manufacture, import, store, package or transport iodized food grade salt without a certificate of registration issued by the Director, on an application made on that behalf.
- (2) An application for a certificate of registration referred to in subregulation (1) shall be-
 - (a) made substantially in the Form set out in the Schedule IV hereto; and
 - (b) accompanied by the documents as may be specified for that purpose by the Director;
- (3) (a) The Director may issue a certificate of registration in accordance with subregulation (4).

- (b) Where the Director refuses the registration, such refusal shall be communicated to the applicant with reasons assigned theretofore within thirty days from the date of receipt of the application.
- (4) The certificate of registration issued by the Director, shall be-
- (a) substantially in the Format set out in the Schedule V hereto; and
- (b) valid for a period of one year from the date of issue of such certificate, unless it is revoked or cancelled earlier and subject to such conditions as specified therein.
- (5) An application for renewal of the certificate of registration shall be-
- (a) made ninety (90) days prior to the expiration of the current certificate of registration in the same Form set out in the Schedule IV hereto; and
- (b) accompanied by the documents as may be specified for that purpose by the Director.
- (6) Renewal of the certificate of registration shall be made by an endorsement on the certificate of registration by the Director.
9. The holder of the certificate of registration shall display conspicuously the registration number and his name and address-
- (a) at all places where such activities are permitted; and
- (b) on the main panels of labels of all products.
10. Iodized food grade salt shall contain food grade Potassium iodate thereto, complies with the requirements specified in the Schedule VI hereto:

Provided however, the CFA on the recommendation of the Food Advisory Committee may allow to add other fortificants in recommended quantities which are deemed to be of public health importance. The powdered form of iodized food grade salt may contain Silicon dioxide (INS 551) or any other anti-caking agent approved by the CFA on the recommendation of the Food Advisory Committee.

11. Iodized food grade salt shall not contain more than-
- (a) 0.5 milligrams per kilogram (0.5 mg/kg) arsenic (As);
- (b) 0.5 milligrams per kilogram (0.5 mg/kg) Cadmium (Cd);
- (c) two milligrams per kilogram (2.0 mg/kg) Lead (Pb);
- (d) 0.1 milligrams per kilogram (0.1 mg/kg) Mercury (Hg).
12. Iodized food grade salt in powdered form shall-
- (a) not contain more than-
- (i) 0.5 *per centum* (0.5%) m/m moisture; and
- (ii) 0.5 *per centum* (0.5%) m/m matter insoluble in water, on dry basis;

- (b) contain not less than ninety-eight *per centum* (98%) m/m Sodium chloride (NaCl) on dry basis;
- (c) be where a minimum of ninety-five *per centum* (95%) m/m is capable of passing through a sieve with an aperture of one millimeter (1 mm) {B.S. 16};
- (d) not contain more than one *per centum* (1.0%) m/m matter soluble in water other than Sodium chloride (NaCl) on dry basis; and
- (e) contain, on dry basis, not less than fifteen milligrams per kilogram (15mg/kg) Iodine (I) at retail level and not more than thirty-five milligrams per kilogram (35mg/kg) Iodine (I) at manufacturing or importing levels.

13. Iodized food grade salt in granular form shall-

- (a) not contain more than-
 - (i) six *per centum* (6.0%) m/m moisture;
 - (ii) 0.5 *per centum* (0.5%) m/m matter insoluble in water, on dry basis; and
 - (iii) two *per centum* (2.0%) m/m matter soluble in water other than Sodium chloride (NaCl) on dry basis;
- (b) contain not less than ninety-seven *per centum* (97%) m/m Sodium chloride (NaCl) on dry basis;
- (c) contain, on dry basis, not less than fifteen milligrams per kilogram (15 mg/kg) Iodine (I) at retail level and not more than thirty-five milligrams per kilogram (35 mg/kg) Iodine (I) at manufacturing or importing levels; and
- (d) be where a minimum of eighty *per centum* (80%) (m/m) is capable of passing through a sieve with an aperture of 4.75 millimeters (4.75mm) {B.S.4} and ninety-five *per centum* (95%) (m/m) shall retain when passing through a sieve with an aperture of one millimeter (1 mm) {B.S.16}.

PART III

General

14. Food grade salt (Iodized and Non-Iodized) shall be packed in transparent food grade air tight packages or containers and when the packing material is in polythene, the thickness of such material shall be not less than 75 micrometers:

Provided however, this regulation shall not apply to iodized food grade salt in free-flowing powdered form in containers used as table top sprinklers.

15. (1) There shall be marked or printed indelibly on the main panel of the label of any package containing food grade salt in Sinhala, Tamil and English languages the common name of the product as “Food Grade Salt-Granular” or “Food Grade Salt-Powder”, as the case may be.
- (2) On the main panel of the label of any package containing iodized food grade salt, there shall be marked or printed indelibly and legibly in Sinhala, Tamil and English languages the following:
- (a) the common name of the product as “Iodized Food Grade Salt-Granular” or “Iodized Food Grade Salt-Powder”, as the case may be;
 - (b) the words “Use without washing”; and
 - (c) the words “Store away from sunlight and heat.”.

16. The relevant fee shall be paid for the issuing of a certificate of registration and its renewal as specified in the Schedule VII hereto.
17. The Food (Iodization of Salt) Regulations 2005 published in the *Gazette Extraordinary*, No. 1405/3 of August 11, 2005 are hereby rescinded without prejudice to anything previously lawfully done thereunder.

PART IV

Interpretation

18. In these regulations unless the context otherwise requires-

“Act” means the Food Act, No. 26 of 1980;

“Chief Food Authority” means the Director General of Health Services as Designated under Section 11 of the Act;

“Common salt” means a form of salt obtained by evaporation of sea water and by washing off its impurities, which contains not less than ninety-Seven *per centum* (97%) of Sodium chloride by weight on a dry matter basis, white or off-white in colour free from visible impurities such as clay, grit, shells and other extraneous matters;

“Director” means the Director in charge of the Food Control Administration Unit;

“Food Advisory Committee” means the Food Advisory Committee appointed under Section 8 of the Act;

“medical practitioner” shall have the same meaning as in the Medical Ordinance (Chapter 105); and

“person” includes a body corporate or unincorporated.

SCHEDULE I

[Regulation 3(2)(a), 3(5)(a)]

**APPLICATION FOR A CERTIFICATE OF REGISTRATION FOR MANUFACTURING AND STORAGE
OF NON-IODIZED FOOD GRADE SALT AT SALTURNS/ IMPORTATION, TRANSPORTATION,
STORAGE OR USAGE OF NON-IODIZED FOOD GRADE SALT OR COMMON SALT FOR
INDUSTRIAL PURPOSES/ SELLING OF NON-IODIZED FOOD GRADE SALT IN PHARMACIES**

1. Full Name of Applicant:-
National Identity Card No:-.....
2. Designation:-
.....
3. Address:-
.....
.....
Telephone No:-..... Email address:-.....
4. Purpose of the Application:-
(Please read and tick (✓) the relevant number)
(i) Manufacturing of food grade salt in salterns
(ii) Importation, transportation and storage of food grade salt/common salt
(iii) Storage of food grade salt in saltern
(iv) Use of food grade salt for industrial purposes
(v) Retail sale of food grade salt/ common salt on medical prescription
5. A. Type/ Name of Industry/ Pharmacy:-.....
B. Address of Industry/Pharmacy:-.....
6. Business/Company Registration No.:-
(Attach a photocopy of the Certificate of Registration)
7. Nature of the Trade:- Government/ Private/ Limited Liability Company
8. Brand Name(s) of the Product: -.....
9. Name and address of the Company:-.....
10. Name and address of Owner/ Board of Directors:-.....
.....
.....
11. Previous Registration No. and Date (if any):-
12. Annual Production capacity (MT):-
13. Name of product manufactured/ sold:-.....

14. Percentage of food grade salt used as an ingredient in the product:-.....
15. Reasons why iodized food grade salt should not be/ need not be used:-.....
.....
.....
16. Expected annual requirement of food grade salt:-.....
17. Expected amount of stock of food grade salt at a given time:-.....

Date:-.....

Signature of Applicant

Company Seal

For office use only

Fee of registration (*for office use*)

Rs..... Receipt No..... Date.....

Certification of the Food and Drug Inspector

1. I have duly inspected the premises where the applicant is carrying on the above industry and verified his declarations.
2. The declarations furnished by the applicant are true and accurate.
3. The applicant requiresKgs of Food Grade Salt/Common Salt for months for the successful operation of his/ her industry.
4. Remarks:

Food and Drug Inspector

Date: Official seal

Recommendation of the Assistant Director (Food Control Administration Unit)

Recommended/ Not Recommended

Date: Assistant Director Food Control Administration Unit

Approval of the Director (Food Control Administration Unit)

APPROVED/ Not Approved

Date: Director in charge of Food Control Administration Unit

SCHEDULE II

[Regulation 3(4)(a)]

**CERTIFICATE OF REGISTRATION FOR MANUFACTURING AND STORAGE OF NON-IODIZED
FOOD GRADE SALT IN SALTURNS**

Registration No:-

Date of Registration:-.....

Subject to the provisions of the Food Act, No. 26 of 1980, the undermentioned applicant is hereby registered for the purpose of manufacturing/ storage of food grade salt in salterns.

1. Name and address of the Applicant: -
.....
.....

2. Location of salterns: -

3. Total Land Areas of salterns (acres):-

Conditions:-

1. All persons manufacturing/ storing food grade salt shall comply with the Food (Iodization of Salt) Regulations 2023.
2. Holder of this certificate of registration shall maintain a record of production (Kg)
3. This certificate of registration shall be valid for one (01) year from

.....
Director in charge of Food Control Administration Unit

SCHEDULE III

[Regulation 3(4)(b)]

CERTIFICATE OF REGISTRATION FOR IMPORTATION / TRANSPORTATION / STORAGE/ USAGE OF NON-IODIZED FOOD GRADE SALT OR COMMON SALT FOR INDUSTRIAL PURPOSES OR SELLING OF NON-IODIZED FOOD GRADE SALT IN A REGISTERED PHARMACY

Mr/ Mrs/ Miss of
.....bearer of National Identity Card No
being the of the Industry/Pharmacy named
..... situated at is hereby granted
permission in terms of the Food (Iodization of Salt) Regulations 2023, published in the *Gazette* Extraordinary, No.
..... of 2023 import/ transport/storeKg of non-iodized food grade
salt and storeKg of non-iodized food grade salt/ common salt at any given time for use in connection with
his/ her industry/ pharmacy, referred to the above.

This certificate is valid for a period of one (01) year from (date)

Director in charge of Food Control Administration Unit

Date:

Note:-

1. Any salt manufacturer issuing the said quantity of food grade salt/ common salt shall indicate the quantity of food grade salt/common salt issued to the certificate holder on the body of the relevant certificate in indelible ink and indicate the date of issue. In the case of imported food grade salt/common salt, the certificate shall be produced at the Imported Food Inspection Unit (IFIU) for verification and endorsement at the time of clearance.
2. If the consignment of salt purchased/ imported is not transported on the same day, the endorsement to that effect shall be made on the body of the relevant certificate by the organization issuing food grade salt/common salt or in the case of imported food grade salt/common salt, by the official of the Imported Food Inspection Unit (IFIU). A certificate without such endorsement shall not be valid for transportation of food grade salt/common salt on any day other than the day purchased or cleared from the port.

(other side of certificate)

To be filled by the Authorized Salt Manufacturer or by the Authorized officer of the Imported Food Inspection Unit (IFIU)

Quantity of salt specified in the certificate of registration overleaf	Quantity of salt issued/ imported	Date	Balance to be issued	Vehicle Number and Date of transportation	Destination	Signature of issuing officer or authorized officer of IFIU	Official Seal

SCHEDULE IV

[Regulation 8(2)(a), 8(5)(a)]

**APPLICATION FOR REGISTRATION OR RENEWAL OF THE MANUFACTURING/ STORAGE/
IMPORTATION/ TRANSPORTATION OR PACKAGING OF IODIZED FOOD GRADE SALT**

1. Full Name of Applicant:-
National Identity Card Number:-.....
2. Designation:-
3. Address:-
.....
.....
Telephone No:-..... Email address:-.....
4. Purpose of the Application:-
(Please read and tick (✓) the relevant number)
- (i) Iodization of food grade salt
(ii) Packaging of Iodized food grade salt
(iii) Importation of iodized food grade salt
(iv) Storage of iodized food grade salt
5. A. Type/ Name of Industry:-.....
B. Address of Industry/ Stores:-.....
6. Business Registration No:-
(Attach a photocopy of the certificate of registration)
7. Nature of the trade:- Government/ Private/ Limited Liability Company
8. Brand Name(s) of the product:-.....
9. Name and address of the Company:-.....
10. Name and address of Owner/ Board of Directors:-.....
.....
.....
11. Previous Registration Number and Date (if any):-
12. Annual Production Capacity (MT):-

Date:-.....

Signature of Applicant

Company Seal

For office use only

Fee of registration

Rs..... Receipt No Date

Certification of the Food and Drug Inspector

1. I have duly inspected the premises where the applicant is carrying on the above industry and verified his declarations.
2. The declarations furnished by the applicant are true and accurate.
3. The applicant requiresKgs of food grade salt for months for the successful operation of his/ her industry.
4. Remarks:

Food and Drug Inspector

Date:

Official seal

Recommendation of the Assistant Director (Food Control Administration Unit)

Recommended/ Not Recommended

Date:

Assistant Director (Food Control Administration Unit)

Approval of the Director in charge of Food Control Administration Unit

Approved/ Not Approved

Date:

Director in charge of Food Control Administration Unit

SCHEDULE V

[Regulation 8(4)(a)]

CERTIFICATE OF REGISTRATION FOR IODIZATION OF FOOD GRADE SALT

PART I

Registration No:-..... Date of registration.....

Subject to the provisions of the Food Act, No. 26 of 1980 and Regulations made thereunder, the under mentioned applicant is hereby registered for the purpose of manufacturing/ importation/ packaging/ storing of iodized food grade salt.

1. Name and Address of Applicant: -
.....
2. Location of iodization facility: -
.....
3. Brand Name(s) of the Product: -

Conditions:-

1. All persons manufacturing/ importing/ packaging/ storing iodized food grade salt shall comply with the Food (Iodization of Salt) Regulations 2023.
2. Holder of this certificate shall maintain a record of laboratory reports of each and every batch.
3. This Certificate of Registration shall be valid for one (01) year from

.....
Director in charge of Food Control Administration Unit

PART II

WRITTEN PERMISSION FOR THE MANUFACTURING/ IMPORTATION /STORAGE/ PACKAGING/ TRANSPORTATION OF IODIZED FOOD GRADE SALT

Mr/ Mrs/ Miss of
..... bearer of National Identity Card No.....
being the of the industry
named situated at is hereby granted
permission in terms of the Food (Iodization of Salt) Regulations 2023 , published in the *Gazette* Extraordinary No.
..... of 2023 to manufacture/ import/ store/ pack/ transportkgs of food
grade salt and storekgs, of food grade salt at any given time for use in connection with his/ her industry,
referred to above.

This permission is valid for a period of one (01) year from (date).....

Director in charge of Food Control Administration Unit

Date:

Note: -

1. Any salt manufacturer issuing the said quantity of food grade salt shall indicate the quantity of food grade salt issued to the written permission holder on the body of the relevant written permission in indelible ink and indicate the date of issue. In the case of imported food grade salt, the written permission shall be produced at the Imported Food Inspection Unit (IFIU) for verification and endorsement at the time of clearance.
2. If the consignment of salt purchased/ imported is not transported on the same day, endorsement to that effect shall be made on the body of the relevant written permission by the organization issuing food grade salt or in the case of imported food grade salt, by the official of the Imported Food Inspection Unit (IFIU). A written permission without such endorsement shall not be valid for transportation of food grade salt on days other than the day purchased or cleared from the port.

(other side of the written permission)

To be filled by the Authorized Salt Manufacturer or by the Authorized Officer of the Imported Food Inspection Unit (IFIU)

Quantity of salt specified in the written permission overleaf	Quantity of salt issued/ imported	Date	Balance to be issued	Vehicle Number and Date of transport	Destination	Signature of issuing officer or authorized officer of IFIU	Official Seal

SCHEDULE V

[Regulation 10]

REQUIREMENTS FOR FOOD GRADE POTASSIUM IODATE

1. Food grade Potassium iodate shall be a crystalline powder free from impurities and shall-

- (a) contain more than ninety-nine *per centum* (99%) m/m Potassium iodate (KIO_3); and
- (b) not contain more than-
 - (i) 0.01 *per centum* (0.01%) m/m Bromate, Bromide, Chlorate and Chloride (Cl^-);
 - (ii) 0.002 *per centum* (0.002%) m/m Iodide (I^-);
 - (iii) two milligrams per kilogram (2mg/kg) Lead (Pb); and
 - (iv) three milligrams per kilogram (3mg/kg) Arsenic (As).

2. Loss on drying of food grade Potassium iodate shall not be more than 0.5 *per centum* (0.5%) (m/m) and five *per centum* (5%) (m/m) aqueous solution of food grade Potassium iodate shall have pH of 5.5- 9.0.

SCHEDULE VII

[Regulation 16]

FEEES

(1) Following fees shall be paid for the issuing of a certificate of registration and its renewal according to the annual production or packaging capacity:

ANNUAL PRODUCTION OR PACKAGING CAPACITY	FEE
1,000 Metric Ton (MT) and below	Rs. 5, 000/-
1,001 Metric Ton (MT) to 5,000 Metric Ton (MT)	Rs. 10,000/-
5,001 Metric Ton (MT) and above	Rs. 25, 000/-

(2) A fee of two thousand rupees (Rs. 2,000) shall be paid for a duplicate copy of the certificate of registration if the original is damaged or lost and such copy of the certificate shall bear the words "Duplicate Copy"

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